

determines whether a valid arbitration agreement exists. [Citation.] But if a valid agreement exists, and if the agreement delegates the arbitrability issue to an arbitrator, a court may not decide the arbitrability issue.”[.] )

A delegation to the arbitrator is enforceable so long as it is clear and unmistakable. (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70, fn. 1 (*Rent-A-Center*).)

A delegation clause is treated as a separate agreement to arbitrate. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1559.) Thus, “when a party’s challenge is directed to the agreement as a whole—even if it applies equally to the delegation clause [such that if the defense is valid the entire agreement will be unenforceable]—the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable.” (*Id.* at pp. 1559-1560; *Rent-A-Center, supra*, 561 U.S. at p. 73.)

“ ‘There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.’ [Citations.] The ‘clear and unmistakable’ test reflects a ‘heightened standard of proof’ that reverses the typical presumption in favor of the arbitration of disputes.” (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892; *see also, e.g., Malone v. Superior Court, supra*, 226 Cal.App.4th at p. 1560 [finding the delegation clause providing “[t]he arbitrator has exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement” to be clear and unmistakable]; *Momot v. Mastro* (9th Cir. 2011) 652 F.3d 982, 988 [finding language delegating issues of “the validity or application of any of the provisions of” the arbitration clause to be a clear and unmistakable agreement to arbitrate the question of arbitrability].)

Here, the Arbitration Agreement includes language clearly and unmistakably delegating to the arbitrator questions of arbitrability. The Arbitration Agreement explicitly provides the arbitrator “exclusive authority . . . to resolve . . . any dispute relating to . . . applicability, enforceability, . . . and any claim that all or any part of this agreement is unconscionable, void, or voidable.” (Arb. Agmt. ¶ 1.) The delegation clause is not revocable.

Therefore, the court must delegate arbitrability issues to the arbitrator, barring any specific challenge to the delegation provision itself. (*See Rent-A-Center, supra*, 561 U.S. at pp. 71-73 [holding a party’s challenge to the arbitration agreement as a whole does not invalidate the delegation clause; while courts may consider enforceability challenges specific to delegation clauses, the arbitrator is to consider challenges to the arbitration agreement as a whole];